The question now presented is whether freedom to disseminate information concerning the provisions of the National Labor Relations Act, to assemble peaceably for discussion of the Act, and of the opportunities and advantages offered by it, is a privilege or immunity of a citizen of the United States secured against state abridgment [20] by § 1 of the Fourteenth Amendment; and whether R. S. 1979 and § 24 (14) of the Judicial Code afford redress in a federal court for such abridgment. This is the narrow question presented by the record, and we confine our decision to it, without consideration of broader issues which the parties urge. The bill, the answer and the findings fully present the question. The bill alleges, and the findings sustain the allegation, that the respondents had no other purpose than to inform citizens of Jersey City by speech, and by the written word, respecting matters growing out of national legislation, the constitutionality of which this court has sustained.

Although it has been held that the Fourteenth Amendment created no rights in citizens of the United States, but merely secured existing rights against state abridgment,[21] it is clear that the right peaceably to assemble and to discuss these topics, and to communicate respecting them, whether orally or in writing, is a privilege inherent in citizenship of the United States which the Amendment protects.

Shaffer v. *Carter*, 252 U. S. 37; *United States* v. *Wheeler*, 254 U. S. 281; *Douglas* v. *New York, N. H. & H. R. Co.*, 279 U. S. 377; *Whitfield* v. *Ohio*, 297 U. S. 431.

[20] As to what constitutes state action within the meaning of the amendment, see *Virginia* v. *Rives*, 100 U. S. 313; *Ex parte Virginia*, 100 U. S. 339, 347; *Home Tel. Co.* v. *Los Angeles*, 227 U. S. 278; *Mooney* v. *Holohan*, 294 U. S. 103, 112; *Lovell* v. *Griffin*, 303 U. S. 444, 450.

[21] *The Slaughter-House Cases*, 16 Wall. 36, 77; *Minor* v. *Happersett*, 21 Wall. 162; *Ex parte Virginia*, 100 U. S. 339; *In re Kemmler*, 136 U. S. 436, 448.